

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1495

By: Rosecrants

AS INTRODUCED

An Act relating to higher education; creating the College Fee Waiver for Children of Parents with Disabilities Act; defining terms; providing for waiver of fees for certain eligible children; providing for eligibility; prohibiting discrimination on the basis of a protected status; requiring oversight by the State Regents for Higher Education; requiring compliance by institutions of higher education; requiring funding by Legislature; providing for severability; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3218.7-2 of Title 70, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "College Fee Waiver for Children of Parents with Disabilities Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3218.7-3 of Title 70, unless there is created a duplication in numbering, reads as follows:

1 As used in the College Fee Waiver for Children of Parents with
2 Disabilities Act:

3 1. "Child" means a biological child, adopted child, or legal
4 ward of the parent(s) with a disability;

5 2. "Fees" means tuition fees, mandatory student fees,
6 registration fees, and any other required costs associated with
7 enrollment and attendance at an institution of higher education;

8 3. "Institution of higher education" means any institution
9 supported wholly or in part by direct legislative appropriations and
10 offering courses of education of any kind beyond or in addition to
11 the twelfth grade, or its equivalent, as such grade is generally
12 understood and accepted in the public school system of Oklahoma,
13 whether called a university, college, junior college, school, or
14 academy; and

15 4. "Parent with a disability" means a child's parent or legal
16 guardian who has a disability as defined under the Americans with
17 Disabilities Act (ADA).

18 SECTION 3. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 3218.7-4 of Title 70, unless
20 there is created a duplication in numbering, reads as follows:

21 A. Institutions of higher education shall waive all fees for an
22 eligible child for up to four (4) years of undergraduate study or
23 until the completion of a bachelor's degree, whichever occurs first,
24 as long as the child remains in good academic standing as defined by

1 the institution of higher education. The waiver shall cover all
2 academic terms including fall, spring, and summer semesters.

3 B. To be eligible for waiver, a child must:

4 1. Be admitted to and enrolled in an institution of higher
5 education within this state; and

6 2. Provide proof of a parent with a disability through
7 documentation such as a Social Security Disability Insurance award
8 letter, a statement from a licensed medical professional, or other
9 valid documentation confirming the disability under the Americans
10 with Disabilities Act (ADA) criteria.

11 The child's eligibility for the waiver shall not be affected by
12 the child's living circumstances or whether the child was raised by
13 the parent with a disability.

14 C. No child shall be discriminated against in the application
15 or awarding of fee waivers under this act based on race, color,
16 religion, sex, national origin, disability, or any other protected
17 Status.

18 D. The Oklahoma State Regents for Higher Education shall
19 oversee the implementation of this act and establish procedures for
20 verifying eligibility and processing fee waivers.

21 E. Institutions of higher education shall comply with the
22 procedures established by the State Regents and submit an annual
23 report to the State Regents on the number of students receiving the
24 fee waiver including the retention and graduation rates.

1 F. The Legislature shall appropriate annual funds to cover the
2 cost of this waiver program. Additional funding may be provided
3 from private grants, donations, or federal assistance programs.

4 G. If any provision of this act or its application is held
5 invalid, the remainder of the act or the application of its
6 provisions to other persons or circumstances shall not be affected.

7 SECTION 4. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

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